

**NEW YORK STATE SUPREME COURT
NEW YORK COUNTY**

JAMMAL CLARK,

FIRST AMENDED SUMMONS

Plaintiff,

Index # 150522/2016

-against-

Law Dept. # 2015-20522

POLICE OFFICER MONSERRATE
BADILLO #5090, POLICE SERGEANT
MARTIN MCBRIDE #3081, POLICE
OFFICER MICHAEL LECLAIR #5045,
POLICE OFFICER BILLY ACOSTA #31
and POLICE OFFICER JACK PALIMENI
#642,

Defendants.

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is that where the cause of action arose, New York, New York.

Dated: Bronx, New York
January 16, 2017

PAULOSE PLLC
5676 Riverdale Avenue, Suite 314
Bronx, NY 10471
347 275 4883

By:


JUSTINE R. GRAY, ESQ.

**NEW YORK STATE SUPREME COURT
NEW YORK COUNTY**

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JAMMAL CLARK,

Plaintiff,

-against-

POLICE OFFICER MONSERRATE
BADILLO #5090, POLICE SERGEANT
MARTIN MCBRIDE #3081, POLICE
OFFICER MICHAEL LECLAIR #5045,
POLICE OFFICER BILLY ACOSTA #31
and POLICE OFFICER JACK PALIMENI
#642,

Defendants.

**FIRST AMENDED
COMPLAINT**

Index # 150522/2016

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INTRODUCTORY STATEMENT

1. This is a civil rights action brought by plaintiff JAMMAL CLARK pursuant to the Fourth and Fourteenth Amendments to the United States Constitution and under 42 USC §§ 1983 and 1988. One morning, while sleeping at his mother's house, defendant police officers, in executing a warrant of arrest for, upon information and belief, reckless driving of a motorbike, brutally beat plaintiff causing plaintiff to sustain multiple cuts, bruises, and contusions as well as severe neck and foot injuries. Plaintiff now seeks redress against the defendants for their unlawful, unnecessary, and unreasonable use of force.

PARTIES

2. Plaintiff JAMMAL CLARK is a twenty-five year old African American man.

3. That at all times hereinafter mentioned, the individually named defendants POLICE OFFICER MONSERRATE BADILLO #5090, POLICE SERGEANT MARTIN MCBRIDE #3081, POLICE OFFICER MICHAEL LECLAIR #5045, POLICE OFFICER BILLY ACOSTA #31 and POLICE OFFICER JACK PALIMENI #642, were duly sworn employees of said department and were acting under the supervision of said department and according to their official duties.

4. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or City of New York.

5. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment with CITY OF NEW YORK.

STATEMENT OF FACTS

6. On or about April 17, 2014, plaintiff was sleeping in a bedroom in his mother's apartment located in the Washington Heights section of Manhattan.

7. At or about 9:00 a.m., a barrage of violent sounds erupted just outside the bedroom door. In came a half dozen or so plain clothed officers, the defendants herein.

8. Plaintiff was grabbed by the arm, ripped out of bed, and thrown like a ragdoll onto the ground. At no time did plaintiff resist.

9. Several of the officers, including defendant officers BADILLO, LECLAIR, ACOSTA and PALIMENI began punching plaintiff in the ribs and back, grabbing and twisting his arms and legs, and choking him. Throughout it all, the officers were yelling obscenities at plaintiff.

10. Eventually, defendant officer MCBRIDE entered the room and instructed the officers to stop their attack on plaintiff.

11. The officers escorted plaintiff, now covered in blood and only wearing his underwear and undershirt, to a van waiting outside.

12. One of the officers punched plaintiff in the neck as he was getting into the van even though plaintiff did not, at any time, resist arrest.

13. Once inside the van, plaintiff began to cry and inquire as to why the officers had so brutally attacked him. An officer responded, "shut the fuck up or I will take you somewhere and fuck you up some more."

14. Plaintiff was taken to the New York State Division of Parole, located at 314 West 40th Street, New York, NY 10018. Onlookers stopped and stared as plaintiff was removed from the van still only in his underwear.

15. Plaintiff's Parole Officer, upon seeing plaintiff, immediately asked if he required medical attention, to which plaintiff replied in the affirmative.

16. Thereafter, EMS arrived at the parole office. But one of the defendant officers told plaintiff that if he chose to go to the hospital it would slow down the process of seeing a judge and being released. Plaintiff did not go with EMS.

17. Defendant officers escorted plaintiff back to the police van and took him to a police precinct in downtown Manhattan. Upon arrival, plaintiff had trouble walking into the precinct as there was broken glass on the ground outside of the building. Again, onlookers stopped and stared at plaintiff still only in his underwear and covered in blood.

18. While inside the police precinct, several police officers pointed and laughed at plaintiff.

19. Eventually, plaintiff was taken to the hospital, but not for treatment. Instead, one of the defendant officers entered the hospital and returned a few minutes later with scrubs and slippers.

20. Plaintiff was directed to put the scrubs and slippers on. He was then taken to the New York City Criminal Court building located at 100 Centre Street, New York, NY 10013.

21. There a court officer informed the officers that plaintiff could not be seen by the Judge dressed in scrubs and slippers. The court officer found alternative clothing for plaintiff.

22. After being seen by the judge, the officers took plaintiff to the Manhattan Detention Complex located at 125 White Street, New York, NY 10013. Plaintiff was not able to see a doctor for treatment of his injuries until the following day.

FIRST CLAIM

42 USC § 1983/FOURTEENTH & FOURTH AMENDMENTS

EXCESSIVE FORCE

23. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

24. By reason of the foregoing, and by using gratuitous, excessive, and unconscionable force, and by failing to prevent other defendants from doing so, the defendants deprived plaintiff of his rights, remedies, privileges, and immunities guaranteed to every citizen, secured by the 42 USC § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from gratuitous and excessive force.

25. Defendants acted under the pretense and color of state law and in their individual and official capacities and within the scope of their employment as police officers and employees. The defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by 42 USC § 1983.

26. As a direct and proximate result of defendants' actions, plaintiff sustained damages in excess of the jurisdiction of any other court.

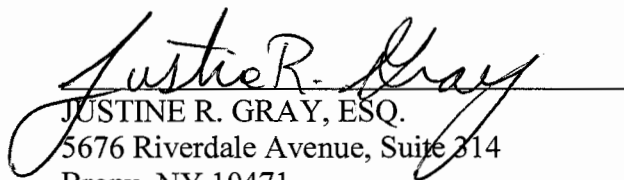
PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against defendants:

1. Compensatory damages in an amount to be determined at trial;
2. Punitive damages in an amount to be determined at trial;
3. An order awarding attorneys' fees and costs; and
4. Such other or further relief as the Court may deem appropriate.

Dated: Bronx, NY
January 16, 2017

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